

THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

PRESENT:

MR. JUSTICE SHAHID BILAL HASSAN

MR. JUSTICE MIANGUL HASSAN AURANGZEB

C.P.L.A. No. 4456/2022

[Against judgment dated 14.10.2022 passed in C.R.No.1281-P of 2019 by Peshawar High Court, Peshawar]

Farid Khan and others

...Petitioner(s)

Versus

Hamid Badshah and others

...Respondent(s)

For the Petitioner(s) : Mr. Shah Khawar, ASC

:

For Respondent(s) No.11 & : Mr. Muhammad Taif Khan, ASC
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Date of Hearing : 22.01.2026

ORDER

SHAHID BILAL HASSAN-J: Brief facts giving rise to the filing of the present petition are that respondents No.1 to 12 instituted a suit for declaration-cum-partition against the present petitioners. After a full-fledged trial, the suit was dismissed by the learned Trial Court vide judgment dated 03.03.2008. The respondents assailed the said judgment by filing an appeal, which was also dismissed by the learned Additional District Judge, Swabi, vide judgment dated 23.04.2008. Thereafter, the respondents approached the High Court by way of civil revision, which was allowed vide judgment dated 10.06.2009, whereby the matter was remanded to the learned appellate court for decision afresh. Upon remand, the learned appellate court allowed the appeal vide judgment dated 05.06.2015, thereby reversing the concurrent findings of the courts below. While recording findings on Issues No.10 and 12 in the judgment dated 05.06.2015, the learned appellate court, instead of mentioning the name of “**Azad Khan**”, inadvertently recorded the name of his father, namely “**Behram Khan**”, despite the consistent pleadings, evidence on record, and findings elsewhere in the judgment acknowledging Azad Khan as the owner of the disputed property.

For rectification of the aforesaid mistake, respondents No.1 to 12 moved an application under Section 152 of the Code of Civil Procedure, 1908 (“CPC”) before the learned appellate court, asserting that the error was clerical in nature and had occurred due to an accidental slip. The learned appellate court allowed the said application vide order dated 07.01.2017, whereby the name of Behram Khan was corrected and substituted with the name of Azad Khan in the judgment dated 05.06.2015. The petitioners, feeling aggrieved by the correction so made, filed an application under Section 12(2) of the CPC before the learned appellate court. The said application was subsequently converted into a revision petition and was dismissed by the learned Additional District Judge-III, Swabi, vide order dated 14.10.2019. Being dissatisfied, the petitioners challenged both the orders dated 07.01.2017 and 14.10.2019 by filing a civil revision before the High Court. The High Court, vide judgment dated 14.10.2022, dismissed the civil revision and hence the instant petition.

2. Heard. Record Perused.

3. At the outset, it would be appropriate to reproduce the relevant provisions of law:

Order XX Rule 3, CPC provides as under:

*“**Judgment to be signed.**—The judgment shall be dated and signed by the Judge in open Court at the time of pronouncing it, and, when once signed, shall not afterwards be altered or added to, save as provided by section 152 or on review.”*

Section 152, CPC reads as follows:

*“**Amendment of judgments, decrees or orders.**—Clerical or arithmetical mistakes in judgments, decrees or orders or errors arising therein from any accidental slip or omission may at any time be corrected by the Court either of its own motion or on the application of any of the parties.”*

A combined reading of the above provisions makes it manifest that although a judgment, once signed, attains finality, the legislature itself has carved out a specific exception enabling correction of clerical or arithmetical mistakes or errors arising from accidental slips or omissions. The scope of section 152, C.P.C. are no longer *res integra*. In the Mst. Farosha case¹, this Court authoritatively held

¹ Mst. Farosha vs. Fazal Gul And Others (PLD 1983 Supreme Court 220)

that the power conferred under section 152 may be exercised “at any time” and even Suo motu. However, it was clarified that such power, though wide, is discretionary and must be exercised having regard to the circumstances of each case, particularly where third-party rights may not be affected.

4. Similarly, In Baqar v. Muhammad Rafique and others (2003 SCMR 1401), this Court emphasized that section 152 is confined to correction of clerical or arithmetical mistakes or errors arising from accidental slips or omissions, and that such errors must be apparent on the face of the record and not require elaborate arguments on questions of fact or law.

5. The same principle has been reiterated by the Supreme Court of India in Vinod Kumar Singh v. Banaras Hindu University and others (1989 MLD 3215), wherein it was held that a judgment becomes operative upon its pronouncement and signature, and thereafter no alteration or addition is permissible except under section 152 or by way of review. It was further clarified that drafts or tentative views do not constitute a judgment; the operative act is the formal pronouncement in open Court. The Supreme Court of India laid down the above principle in the following words:

“5. ... It is evident that the decision which is so pronounced or intimated must be a declaration of the mind of the Court as it is at the time of pronouncement. We lay no stress on the mode or manner of delivery, as that is not of the essence, except to say that it must be done in a judicial way in open Court. But, however, it is done, it must be an expression of the mind of the Court at the time of delivery. We say this because that is the first judicial act touching the judgment which the Court performs after the hearing. Everything else up till then is done out of Court and is not intended to be the operative act which sets all the consequences which follow on the judgment in motion. Judges may, not often do, discuss the matter among themselves and reach tentative conclusion. That is not their judgment. They may write and exchange drafts. Those are not the judgments either, however, heavily and often they may have been signed. The final operative act is that which is formally declared in open Court with the intention of making it the operative decision of the Court. That is what constitutes the judgment.

6. ... It is only after the judgment is both pronounced and signed that alterations or additions are not permissible, except under the provisions of S.152 or S.114 of the Civil P.C. or, in very exceptional cases, under S. 151 of the Civil P.C.”

6. In the present case, it is not disputed that while recording findings on certain issues, the learned appellate court inadvertently

mentioned the name of the father of the party instead of the party himself, despite the pleadings, evidence, and the rest of the judgment consistently identifying the correct person (Azad Khan) as the owner of the disputed property. The correction made by the learned appellate court did not introduce any new relief, alter the substantive findings, or re-open the merits of the case. It merely brought the judgment in conformity with the manifest intention of the Court as discernible from the record as a whole. Such a correction squarely falls within the ambit of an “error arising from accidental slip or omission” as contemplated by section 152, C.P.C. The High Court has rightly observed that no material change occurred in the judgment and that the correction was confined to rectifying an obvious mistake apparent on the face of the record. We are also persuaded by the reasoning that the exercise of jurisdiction under section 152, C.P.C. in the facts of the present case was neither inequitable nor prejudicial, nor were any third-party rights shown to have intervened or infringed.

7. In view of the settled legal position and the facts of the case, we find no illegality, irregularity, jurisdictional defect, or misreading of law in the impugned judgment of the High Court. This Civil Petition for Leave to Appeal is, therefore, dismissed, and leave is refused.

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8. Since the main petition has been decided, the instant petition has become infructuous. The same is disposed of, accordingly.

JUDGE**JUDGE**

Islamabad the
22nd January, 2026
'APPROVED FOR REPORTING'
M.A. Hassan